

COMPLETE MPN EMPLOYEE NOTIFICATION

Important Information about Medical Care if You Have a Work-Related Injury or Illness

Complete Written Employee Notification RE: Berkshire Hathaway Homestate Companies Medical Provider Network ("MPN") (Title 8, California Code of Regulations, section 9767.12)

California law requires your employer to provide and pay for medical treatment if you are injured at work. Your employer has chosen to provide this medical care by using a Workers' Compensation physician network called a Medical Provider Network (MPN). This MPN is administered by Berkshire Hathaway Homestate Companies. This notification tells you what you need to know about the MPN program and describes your rights in choosing medical care for work-related injuries and illnesses.

What happens if I get injured at work?

In case of an emergency, you should call 911 or go to the closest emergency room. If you are injured at work, notify your employer as soon as possible. Your employer will provide you with a claim form. When you notify your employer that you have had a work-related injury, your employer or insurer will make an initial appointment with a doctor in the MPN.

What is an MPN?

A Medical Provider Network (MPN) is a group of health care providers (physicians and other medical providers) used by your Employer to treat workers injured on the job. MPNs must allow employees to have a choice of provider(s). Each MPN must include a mix of doctors specializing in work-related injuries and doctors with expertise in general areas of medicine.

What MPN is used by my employer?

Your employer is using the Berkshire Hathaway Homestate Companies MPN with the identification number 0145. You must refer to the MPN name and the MPN identification number whenever you have questions or requests about the MPN.

Who can I contact if I have questions about my MPN?

The liaison listed in this notification will be able to answer your questions about the use of the MPN and will address any complaints regarding the MPN.

MPN Liaison	
Name:	MPN Coordinator
Telephone Number:	(888) 495-8949
Email Address:	mpn@bhhc.com

General information regarding the MPN can also be found at: www.bhhc.com – click on "Injured Workers" in the top right corner, navigate down the page to "Resources," then click on "California MPN Providers."

What if I need help finding and making an appointment with a doctor?

The MPN's Medical Access Assistant will help you find available MPN physicians of your choice and can assist you with scheduling and confirming physician appointments. The Medical Access Assistant is available Monday through Saturday from 7am-8pm (Pacific) and can schedule medical appointments during doctors' normal business hours. Assistance is available in English and Spanish.

Medical Access Assistant	
Toll Free Telephone:	(855) 924-4272
Fax Number:	(415) 675-5499
Email Address:	mpn@bhhc.com

How do I find out which doctors are in my MPN?

You can get a regional list of all MPN providers in your area by calling the Medical Access Assistant or by visiting www.bhhc.com (see path above). You can also navigate directly to www.goperspecta.com/VPD/berkshirehathawayCAMPN/public/.

The regional list must include:

- A list of all MPN Primary Treating Providers within 15 miles or 30 minutes of where you work or live.
- A list of all MPN Specialists within 30 miles or 60 minutes of where you work or live.
- A list of all MPN providers within the county where you live and/or work.

You may choose which list you wish to receive, and you have the right to obtain a list of all MPN providers upon request.

How do I choose a provider?

Your employer or the insurer for your employer will arrange the initial medical evaluation with an MPN physician. After the first medical visit, you may continue to be treated by that doctor, or you may choose another doctor from the MPN. You may continue to choose doctors within the MPN for all of your medical care for this injury. If appropriate, you may choose a specialist or ask your treating doctor for a referral to a specialist — some specialists only accept referral appointments.

Can I change providers?

Yes. You can change providers within the MPN for any reason, but the providers you choose should be appropriate to treat your injury. Contact your Claims Professional or the Medical Access Assistant if you want to change your treating physician.

What standards does the MPN have to meet?

The MPN has providers throughout California and must give you access to a regional list of providers that includes at least three physicians in each specialty commonly used to treat work injuries/illnesses in your industry, within 30 minutes/15 miles for primary treating physicians and 60 minutes/30 miles for specialists.

After you notify your employer of your injury, the MPN must provide initial treatment within 3 business days. If specialist treatment is authorized, the appointment must be scheduled within 10 business days and available within 20 business days of your request. If the MPN cannot schedule a timely appointment within ten (10) business days, your employer must permit you to obtain treatment outside the MPN.

If there are no MPN providers in the appropriate specialty available within the distance/timeframe requirements, you may seek treatment outside the MPN — but the distance to that non-MPN provider must be less than the distance to the nearest MPN provider.

What if there are no MPN providers where I am located?

If you live in a rural area, work or live temporarily outside the MPN service area, or are a former employee permanently living outside the service area, the MPN or your treating doctor will give you a list of at least three physicians who can treat you, and may allow you to choose your own doctor outside the network.

What if I need a specialist that is not available in the MPN?

You can treat with a specialist outside the MPN. Your primary treating physician will usually make the referral; if not, your Claims Professional can help. Your MPN physician remains your primary treating physician and continues to direct your care.

What if I disagree with my doctor about medical treatment?

You may choose another doctor within the MPN at any time. If you disagree with the diagnosis or treatment, you may request a second opinion from another MPN doctor. To do so:

1. Inform your Claims Professional, by phone or in writing, of the dispute.
2. Select a physician from the regional MPN provider list (provided upon request).
3. Make an appointment with the second-opinion physician within 60 days.
4. Inform your Claims Professional of the appointment date and time.
5. You may request a copy of the medical records sent to the second-opinion physician.

If you don't make an appointment within 60 days of receiving the provider list, you lose the right to a second or third opinion on that disputed diagnosis/treatment. If you disagree with the second opinion, you may request a third opinion through the same process. If you disagree with the third opinion, you may request an MPN Independent Medical Review (MPN IMR) — your Claims Professional will provide the request form.

Can I Continue Being Treated By My Doctor?

You may qualify to continue treatment with a non-MPN provider (transfer of care or continuity of care) for up to a year if your injury or illness meets any of the following:

- **(Acute)** Treatment will be completed in less than 90 days;
- **(Serious or Chronic)** The condition is serious, continues at least 90 days without full cure, or worsens and requires ongoing treatment;
- **(Terminal)** An incurable illness or irreversible condition likely to cause death within one year or less;
- **(Pending Surgery)** An authorized surgery/procedure occurring within 180 days of the MPN effective date or contract termination date between the MPN and your doctor.

If your employer decides to transfer your care into the MPN, you and your primary treating physician must receive a notification letter. You can disagree with the transfer decision — ask your primary treating physician for a medical report addressing the four conditions above; they have 20 days to provide it. Give a copy to your employer to request postponement of the transfer. Disputes over the report can be resolved under the complete Transfer of Care policy (available from your Claims Professional or the Medical Access Assistance line, in Spanish upon request).

What if I am being treated by an MPN doctor who decides to leave the MPN?

Your employer/claims administrator has a written Continuity of Care policy determining whether you can temporarily continue with your doctor if they leave the MPN. The same four qualifying conditions and 20-day report process described above apply. The complete Continuity of Care policy is available from your Claims Professional or the Medical Access Assistance line.

What if I have questions or need help?

- **Medical Access Assistants:** (855) 924-4272, Monday-Saturday 7am-8pm Pacific. Voicemail messages are returned the following business day.
- **MPN Liaison:** MPN Coordinator, (888) 495-8949. Complaints: MPN@bhhc.com or fax (415) 675-5499.

- **Division of Workers' Compensation (DWC):** 1-800-736-7401, or www.dir.ca.gov/dwc (click "medical provider networks").
- **MPN Independent Medical Review:** DWC Medical Unit, P.O. Box 71010, Oakland, CA 94612, (510) 286-3700 or (800) 794-6900.

Keep this information in case you have a work-related injury or illness.

Berkshire Hathaway Homestate Insurance Company • BHC Special Risks Insurance Company • Continental Divide Insurance Company • Cypress Insurance Company • Oak River Insurance Company • Redwood Fire and Casualty Insurance Company



ACKNOWLEDGEMENT OF RECEIPT OF MPN INFORMATION

I acknowledge that I have received information regarding my employer's use of a Medical Provider Network for Worker's Compensation claims, including a notification outlining the MPN and information about continuity of care.

Employee Certification	
Employee's Name:	
Employee's Signature:	
Date:	